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Decision after supervision according to the
Data Protection Regulation - H&M;
Hennes & Mauritz GBC AB
Decision of the Swedish Data Protection Authority

The Swedish Data Protection Authority finds that H&M; Hennes & Mauritz GBC AB (556070-1715) has processed personal data in violation of Articles 12.3 and 21.3 of the Data Protection Regulation¹ by

- regarding complaint 1: failing to cease processing the complainant's personal data for direct marketing purposes without undue delay after the complainant objected to such processing on April 5, 2019,
- regarding complaint 2: failing to cease processing the complainant's personal data for direct marketing purposes without undue delay after the complainant objected to such processing on July 4, 2019,
- regarding complaint 3: failing to cease processing the complainant's personal data for direct marketing purposes without undue delay after the complainant objected to such processing on September 3, 2019,
- regarding complaint 4: failing to cease processing the complainant's personal data for direct marketing purposes without undue delay after the complainant objected to such processing on July 31, 2018,
- regarding complaint 5: failing to cease processing the complainant's personal data for direct marketing purposes without undue delay after the complainant objected to such processing in July 2018,
- regarding complaint 6: failing to cease processing the complainant's personal data for direct marketing purposes without undue delay after the complainant objected to such processing on August 8, 2019.

The Swedish Data Protection Authority finds that H&M; Hennes & Mauritz GBC AB has processed personal data in violation of Article 6.1 of the Data Protection Regulation by

1 Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of
natural persons with regard to the processing of personal data and on the free movement of such data,

and repealing
Directive 95/46/EC (General Data Protection Regulation).

Case number:
DI-2020-10545

Date:
2023-10-17

Swedish Data Protection Authority
Case number: DI-2020-10545
2(17)
Date: 2023-10-17

- regarding complaint 1: processing the complainant's personal data for direct marketing purposes without legal basis during the period from April 7, 2019, to August 2, 2019,
 - regarding complaint 2: processing the complainant's personal data for direct marketing purposes without legal basis during the period from July 6, 2019, to October 3, 2019,
 - regarding complaint 3: processing the complainant's personal data for direct marketing purposes without legal basis during the period from September 5, 2019, to February 5, 2020,
 - regarding complaint 4: processing the complainant's personal data for direct marketing purposes without legal basis during the period from August 2, 2018, to February 16, 2020,
 - regarding complaint 5: processing the complainant's personal data for direct marketing purposes without legal basis during the period from August 2018 to May 20, 2019,
 - regarding complaint 6: processing the complainant's personal data for direct marketing purposes without legal basis during the period from August 10, 2019, to September 15, 2019.
- The Swedish Data Protection Authority finds that H&M; Hennes & Mauritz GBC AB, regarding complaints 1 to 6, has processed personal data in violation of Article 12.2 of the Data Protection Regulation by failing to ensure systems and routines that sufficiently facilitated the complainants' exercise of their right to object to direct marketing. The Swedish Data Protection Authority decides, based on Articles 58.2 and 83 of the Data Protection Regulation, that H&M; Hennes & Mauritz GBC AB shall pay an administrative fine of 350,000 (three hundred fifty thousand) kronor for the established violations.

Account of the supervisory matter

Processing

The Swedish Data Protection Authority (IMY) has initiated supervision against H&M; Hennes & Mauritz GBC AB (H&M; or the company) due to six complaints. IMY's review concerns the handling of the complainants' objections to direct marketing and the subsequent processing of personal data. The complaints have been forwarded to IMY, in its capacity as the responsible supervisory authority according to Article 56 of the Data Protection Regulation.

The transfer has occurred from the supervisory authorities in the countries (Poland, Italy, and the United Kingdom) where the complainants have submitted their complaints in accordance with the Regulation's provisions on cooperation in cross-border processing. The processing of the supervisory matter has taken place through written correspondence. Given that it concerns cross-border processing, IMY has utilized the mechanisms for cooperation and consistency found in Chapter VII of the Data Protection Regulation.

The relevant supervisory authorities have been the data protection authorities in Germany, Slovenia, France, Denmark, Spain, Norway, Italy, Finland, Poland, Belgium, Portugal, Cyprus, Estonia, and the Netherlands.

Swedish Data Protection Authority

Diary Number: DI-2020-10545

3(17)

Date: 2023-10-17

Since complaints 4 and 5 have been transferred from the United Kingdom, which has left the EU cooperation during the processing of the supervisory matter, IMY has been in contact with the UK's supervisory authority (ICO) to ensure that a ne bis in idem situation is avoided. ICO has no information that they have taken any corrective measures regarding the complaints. It is noted that ICO's retention period for complaints is two years and therefore they have not retained any information about the complaints. IMY further notes that the supervisory subject, when communicating with IMY, did not indicate that any such measures have been taken by ICO. It is clear from Article 3 of the General Data Protection Regulation that the provisions of the regulation apply to all processing of personal data carried out within the framework of the activities of the data controller's establishment within the Union, regardless of whether the processing is carried out within the Union or not. IMY thus assesses that there is no obstacle to including complaints 4 and 5 in IMY's review.

General information about what the complainants and H&M; have stated

According to the complaints, the complainants have received unwanted newsletters from the company despite having objected to their personal data being processed for direct marketing purposes.

The company has stated that it is the data controller for the personal data processing covered by the supervision.

The company offers its customers three different ways to object to marketing via newsletters.

Customers can change their subscription status in their account settings, unsubscribe from subscriptions via a link included in each newsletter dispatch, or contact the company's customer service. The company manages a very large number of subscribers annually, and it is only in a very small portion of unsubscribe cases that any form of problem arises.

The company confirms that it has received the complainants' objections in all complaints. However, the company no longer has any documented correspondence with the complainants as the retention period for communication with customer service has expired. The company intends to review its retention period for communication with customer service for the purpose of being able to demonstrate what measures have been taken to meet the rights of data subjects.

Below is a summary of what the complainants and the company have stated in relation to each complaint.

Complaint 1 (from Poland with national reference number: ZSPR.440.1340.2019)

In the complaint, it is asserted that the complainant made their objection to receiving direct marketing by filling out the company's form via account settings, as well as by contacting customer service on several occasions, without success. The complainant has contacted both the Polish (obsługaklienta.pl@hm.com) and the British (customerservice.UK@hm.com) customer service.

According to the email correspondence attached to the complaint, the company informed the complainant on April 8, 2019, that they would not receive any more newsletters. The complainant has provided evidence that the company sent newsletters up to and including August 1, 2019.

In its response, the company stated that it terminated the complainant's subscription to the company's general newsletter on April 5, 2019, but mistakenly (and in violation of the company's internal instructions) the complainant was only unsubscribed from the general newsletter and not from the newsletter associated with the customer club. On April 2

Data Protection Authority

Case Number: DI-2020-10545

4(17)

Date: 2023-10-17

In August 2019, newsletters related to the customer club were also discontinued, and the complainant has not received any marketing since then. The company has admitted that it did not handle the request in accordance with its procedures but stated that the mistake cannot occur again as it is no longer technically possible for customer service to unsubscribe a customer from only one type of newsletter.

Complaint 2 (from Italy with national reference number: 142785)

In the complaint, it is claimed that the complainant expressed their objection to receiving direct marketing by using the unsubscribe link in the newsletter dispatch, as well as by contacting customer service on three occasions without success. In an email to the company on July 4, 2019, the complainant states that they attempted to use the unsubscribe link about ten times. The complainant has been in contact with the Italian customer service via servizioclienti.it@hm.com. The company informed the complainant on July 4, 2019, that customer service had forwarded the matter to the appropriate department and that it might take some time before the complainant's request was fully addressed. The complainant continued to receive newsletters until October 3, 2019.

The company has stated in its response that it terminated the complainant's subscription to the company's general newsletter on July 4, 2019. By mistake (and in violation of the company's internal instructions), the complainant was only unsubscribed from the general newsletter and not from the newsletter associated with the customer club. On October 2, 2019, newsletters related to the customer club were also discontinued, and the complainant has not received any marketing after October 3, 2019. The company has admitted that it did not handle the request in accordance with its procedures but stated that the mistake cannot occur again as it is no longer technically possible for customer service to unsubscribe a customer from only one type of newsletter.

Complaint 3 (from Italy with national reference number: 146896)

From the attached email correspondence related to the complaint, it is evident that the complainant contacted the company on September 3, 2019, to object to direct marketing. On the same day, the complainant received an email from the company with information that the unsubscription had been processed. On September 7, 2019, the complainant contacted the company again via email and pointed out that they were still receiving unwanted emails. The complainant received a response from the company the same day with instructions to change settings under "my pages" and to use the unsubscribe link at the bottom of the company's marketing dispatches. The complainant replied that they had already taken the suggested actions about ten times. The complainant has been in contact with the Italian customer service via servizioclienti.it@hm.com.

The company has stated in its response that it terminated the complainant's subscription to the company's general newsletter on September 3, 2019. By mistake (and in violation of the company's internal instructions), the complainant was only unsubscribed from the general newsletter and not from the newsletter associated with the customer club. On February 5, 2020, newsletters related to the customer club were also discontinued, and the complainant has not received any marketing thereafter. The company has admitted that it did not handle the request in accordance with its procedures but stated that the mistake cannot occur again as it is no longer technically possible for customer service to unsubscribe a customer from only one type of newsletter.

Swedish Data Protection Authority

Diary Number: DI-2020-10545

5(17)

Date: 2023-10-17

Complaint 4 (from the United Kingdom with national diary number: RFA0782737)

In the complaint, it is asserted that the complainant expressed their objection to receiving direct marketing by repeatedly using the unsubscribe link in the newsletter dispatch, by calling customer service, and by contacting the company via email on at least two occasions. The complainant has been in contact with customer service via the email address customerservice@arket.com. The complainant has attached email correspondence with the company as well as a message from the company dated July 26, 2018, indicating that an unsubscribe attempt had failed. The complainant

stated in their original complaint to the British supervisory authority that they contacted H&M; on July 31, 2018. The complainant has attached an email from Arket's customer service dated July 31, 2018, which contains instructions on what further actions the complainant can take to object to direct marketing. The complainant has also attached email correspondence from August 14, 15, 17, and 18, 2018. The company informed the complainant on August 18, 2018, that customer service had forwarded the matter to the appropriate department and that it could take 3-4 working days before the complainant's request was fully addressed. The complainant has since continued to receive newsletters, including on September 2, 2018, according to a copy of the marketing dispatch attached to the complaint. The company has stated in its response that it has limited information on the matter. The company's customer system indicates that the complainant received newsletters up until February 16, 2020. The company has not sent any newsletters to the complainant thereafter.

Complaint 5 (from the United Kingdom with national diary number: RFA0768679)

In the complaint, it is asserted that the complainant expressed their objection to receiving direct marketing by using the unsubscribe link five times without success. The complaint does not specify an exact date for when the complainant objected. However, the complainant approached the British data protection authority with a complaint and stated that they had attempted to unsubscribe from the company's newsletter five times during the relevant four-week period. The complainant also attached the company's latest marketing dispatch dated July 18, 2018.

The company has stated in its response that the British data protection authority (ICO) contacted the company regarding this matter on May 20, 2019. On the same day, the company unsubscribed the complainant from the newsletter. The complainant has not received any newsletters since then. On May 29, 2019, the ICO informed the company that the complainant had received information that their request was being handled. The company finally states that the complaint indicates that the company has responded to the complainant on several occasions.

Complaint 6 (from Poland with national diary number: ZSPR.440.1662.2019)

In the complaint, it is asserted that the complainant expressed their objection to receiving direct marketing by many times using the unsubscribe link in the newsletter dispatch, as well as by contacting the company via email at least twice and by filling out the company's form via account settings, without success. The complainant has contacted the Polish customer service via obsługaklienta.pl@hm.com.

The company informed the complainant on August 8, 2019, that they had been unsubscribed from the newsletter but that it may take up to 30 days before the complainant's request...

Swedish Data Protection Authority

Diary Number: DI-2020-10545

6(17)

Date: 2023-10-17

The complainant has attached to the complaint an excerpt from a newsletter that was sent to the complainant's email address on September 15, 2019.

The company has stated in its response that it lacks information about the case because the complainant has requested that all personal data be deleted.

What H&M; has stated about the measures taken

The company manages a very large number of subscribers annually. The company's assessment is that only a small portion of the cases where a subscriber requests to unsubscribe from further communications encounter some form of problem.

In October 2019, the company established a special working group consisting of individuals from various areas of expertise, such as IT development, data protection, and marketing. The purpose was to allocate additional resources and more focus on effectively resolving situations where a few unsubscriptions have encountered obstacles.

During the ongoing management and improvement work conducted in these matters, the company has identified several causes that have been addressed through:

- bug fixes related to customer service's manual changes to a customer's subscription status,

- bug fixes related to subscription status in a member/account holder's account settings, and
- adjustments to routines, working methods, and additional training of customer service personnel.

The company further states that several systems are involved in the dispatch of newsletters. To further reduce the risk of consequences from bugs in the technical systems, the company implemented a manual routine in May 2020 to ensure that updates occur in all systems. This made it possible to proactively correct the subscription status in communicating systems and avoid incorrect dispatches of newsletters. This manual routine was automated in July 2020.

On December 8, 2020, the company implemented a technical solution that ensures that all involved systems receive updated information when a customer unsubscribes, regardless of previous status. The company has also introduced features for systematic flagging when a subscriber clicks on an unsubscribe link more than once. This allows for actions to be taken to investigate whether there are any problems with the unsubscription.

Previously, when a customer clicked on the unsubscribe link, a signal was sent to one of the company's systems, which in turn communicated with surrounding systems. Since December 2020, the signal is sent directly to the system that sends out the newsletters. According to the company, this reduces the risk of unsubscriptions not going through.

The company is also working on implementing a monitoring system that will be able to flag if any systematic problems arise in connection with an unsubscription case.

The company also intends to conduct a review of the subscribers in the company's customer club in order to ensure that all subscription statuses are correct.

Swedish Data Protection Authority

Case Number: DI-2020-10545

7(17)

Date: 2023-10-17

****Motivation of the Decision****

****Applicable Provisions****

According to Article 6 of the General Data Protection Regulation (GDPR), it is required that anyone processing personal data has a legal basis for the processing, i.e., that at least one of the conditions in Article 6.1 is fulfilled.

Article 21 of the GDPR provides a right for the data subject to object to the processing of personal data based on Article 6.1 e or 6.1 f of the GDPR. According to Article 21.2, the data subject shall have the right to object at any time to the processing of personal data for direct marketing purposes concerning him or her. From Article 21.3 it follows that if the data subject objects to such processing, the personal data shall no longer be processed for direct marketing purposes.

According to Article 12.3 of the GDPR, the data controller shall provide the data subject with information about the measures taken in response to a request under Article 21 of the GDPR without undue delay and in any event no later than one month after the request has been received. The one-month time limit may be extended by a further two months if the request is particularly complex or if there are a high number of requests received.

If the one-month time limit is extended, the data controller shall inform the data subject of the extension. The notification of the extension of the time limit shall be made within one month of the request being received. The data controller shall also state the reasons for the delay.

Article 12.2 of the GDPR indicates that the data controller shall facilitate the exercise of the data subject's rights in accordance with Articles 15–22. According to Recital 59 of the GDPR, procedures should be established that make it easier for data subjects to exercise their rights under this Regulation, including mechanisms for requesting and, where appropriate, obtaining access to and rectification or erasure of personal data, as well as for exercising the right to object. The data controller should also provide tools for electronically submitted requests, particularly in cases where personal data is processed electronically.

****Assessment of the Swedish Data Protection Authority****

Has there been a violation of Article 12.2 of the GDPR?

The Swedish Data Protection Authority (IMY) must assess whether H&M; has sufficiently facilitated the

complainants' right to object in accordance with the GDPR regarding the six complaints. Consequently, IMY does not investigate the company's new routines concerning the period after the complainants' requests have already been handled by the company.

According to IMY, it follows from Article 12.2 and Recital 59 of the GDPR that the company in this case had an obligation to have internal routines that allow data subjects to exercise their rights in a simple and effective manner. This obligation presupposes that the data controller regularly checks and ensures that the routines and systems used enable data subjects to easily exercise their rights.

Swedish Data Protection Authority

Diary Number: DI-2020-10545

8(17)

Date: 2023-10-17

The Company has, in its statements to IMY, explained that it has been possible to unsubscribe a registered user from various newsletters in the system and in connection with handling the complainants' objections to direct marketing. Regarding complaints 1-3, the Company has been able to ascertain that the complainants have unsubscribed from the general newsletter but not from the newsletter associated with the customer club. Regarding complaints 4-6, the Company lacks sufficient information. The Company has stated that it is no longer possible for customer service to unsubscribe only from general newsletters and that a corresponding situation cannot occur anymore.

Furthermore, it can be noted that the complainants in complaints 2-6 have stated that they have used the unsubscribe link included with the newsletter multiple times, in some cases up to ten times, without the newsletters ceasing to arrive. There have been five complainants from three different countries who have repeatedly and sporadically used the unsubscribe link without it functioning. The Company has reported several general and extensive technical measures that have been taken to reduce the risk of unsubscriptions not going through.

The complainants in complaints 1, 2, 3, 4, and 6 have, after noting that the unsubscribe link did not work, contacted the Company in various ways, including using forms via account settings, via email, and through contact forms. The complainants have at different times, over a period of approximately one year, also contacted customer service in Italy, Poland, and the United Kingdom, as well as customer service for the Arket brand, without customer service being able to correctly perceive and handle their requests.

In light of the fact that the Company was already made aware in June 2018 of deficiencies regarding, among other things, the unsubscribe function, IMY assesses that the Company has delayed too long (until October 2019) in addressing the existing deficiencies.

Upon assessing the circumstances mentioned above, IMY finds that there have been deficiencies in the internal process for handling objections according to Article 21.2 of the General Data Protection Regulation (GDPR) concerning the six complaints, which have resulted in the complainants not being able to easily assert and exercise their rights under the Regulation. The Company has thus violated Article 12.2 of the GDPR.

Right to Object – Has there been a violation of Articles 21.3, 12.3, and 6.1 of the GDPR?

General Principles

If a registered individual objects to direct marketing according to Article 21.2 of the GDPR, then, according to Article 21.3, personal data shall no longer be processed for such purposes. In accordance with Article 12.3 of the GDPR, the data controller shall, without undue delay and at the latest within one month after the request is received, take action regarding the request and provide information about the actions taken. A request to object to direct marketing according to Article 21.3 that is not fulfilled without undue delay therefore constitutes a violation of both Article 21.3 and 12.3.

After an objection, further processing of the registered individual's personal data is no longer permitted for direct marketing purposes. IMY notes that in light of this prohibition, there can also be no legal basis according to Article 6.1 of the GDPR for such processing. Continued processing for marketing purposes, after an objection according to Article 21.3 has been received and improperly handled by

the data controller, thus also constitutes a violation of...

Swedish Data Protection Authority

Diary Number: DI-2020-10545

Page 9 of 17

Date: 2023-10-17

****Article 6.1.**** To determine when the company no longer had a legal basis for processing, it must be assessed when an objection should have been handled at the latest. Since the right to object to direct marketing under Article 21.2 of the General Data Protection Regulation is unconditional, there is no room for individual assessment of whether such an objection should be accepted. The handling of objections to direct marketing should therefore be a routine measure for the data controller and be carried out promptly.

The General Data Protection Regulation emphasizes the importance of correctly evaluating and mitigating any risks to individuals' rights and freedoms resulting from the processing of personal data. An example of a risk to individuals is that marketing may aim to influence the choices and purchasing habits of data subjects, and it is therefore important that H&M, as a major player, has effective routines and processes in place to promptly handle data subjects' requests to object.

H&M has an automated system designed to easily capture a data subject's expression of will to object to direct marketing and also to easily and quickly stop mailings for direct marketing purposes. Despite this, all complainants' expressions of will to object to direct marketing have had to be communicated repeatedly. In complaints 1, 2, 3, 4, and 6, the complainants' objections have also had to be communicated through various contact channels with the company, either by using H&M's unsubscribe link or by contacting the company in different ways or a combination of these. It is particularly important for the company to act quickly when there are indications that the complainants have been unable to exercise their right to object, as this could mean, and in the six individual cases has meant, that the complainant, despite previous objections, has received marketing communications against their will.

Considering what has been stated above, IMY assesses that the time within which the company should have acted in these six individual cases was very short. How long this time should be must be assessed with regard to the circumstances of the individual case and can vary, for example, depending on whether the unsubscription occurs automatically or manually. In light of the circumstances in this case, IMY assesses that two days was a reasonable time for the company to handle the request to object in the six relevant cases.

****Starting Point in Each Complaint****

****Complaint 1**** (from Poland with national reference number: ZSPR.440.1340.2019)

The complainant does not specify the exact date on which they first objected to direct marketing to the company by filling out the company's form via account settings. However, the complainant has attached email correspondence with the company, which shows that the company informed the complainant on April 8, 2019, that they would not receive any more newsletters.

The company cannot confirm the date of the complainant's objection as customer service correspondence with the complainant has been filtered.

From the investigation, it is not possible to determine the exact date when the complainant first objected to direct marketing. However, the investigation shows that the complainant, in any case, Swedish Data Protection Authority

Diary Number: DI-2020-10545

10(17)

Date: 2023-10-17

objection against direct marketing on April 5, 2019, as the company stated in its response that it had terminated the complainant's subscription to the company's general newsletter on that day.

After the complainant objected to the processing of their personal data for direct marketing purposes on at least April 5, 2019, the company continued to send newsletters to the complainant until August 2, 2019.

In this particular case, the direct marketing communications thus continued for nearly four months after the complainant's objection. The Swedish Data Protection Authority (IMY) finds that the company should have addressed the complainant's request for objection within at least two days. Therefore, the company did not handle the complainant's objection without unnecessary delay and thus acted in violation of Articles 12.3 and 21.3 of the General Data Protection Regulation (GDPR).

Furthermore, the company lacked a legal basis under Article 6 of the GDPR for the processing of the complainant's personal data for direct marketing purposes that occurred thereafter. IMY notes against this background that the company, from April 7, 2019, until the communications ceased, processed the complainant's personal data in violation of Article 6.1 of the GDPR.

Complaint 2 (from Italy with national reference number: 142785)

The complainant does not specify the exact date on which they first objected to direct marketing to the company by using the unsubscribe link.

However, the complainant has attached email correspondence with the company from July 4, 2019, which shows that they had already attempted to use the unsubscribe link a dozen times by then.

The company cannot confirm the date of the complainant's objection as the customer service correspondence with the complainant has been deleted.

From the investigation, it is not possible to determine the exact date when the complainant first objected to direct marketing. However, the investigation shows that the complainant at least objected to direct marketing on July 4, 2019, as the company stated in its response that it had terminated the complainant's subscription to the company's general newsletter on that day.

After the complainant objected to the processing of their personal data for direct marketing purposes at least on July 4, 2019, the company continued to send newsletters to the complainant until October 3, 2019.

In this case, the direct marketing communications thus continued for nearly three months after the complainant's objection. IMY finds that the company should have addressed the complainant's request for objection within at least two days. Therefore, the company did not handle the complainant's objection without unnecessary delay and thus acted in violation of Articles 12.3 and 21.3 of the GDPR. Furthermore, the company lacked a legal basis under Article 6 of the GDPR for the processing of the complainant's personal data for direct marketing purposes that occurred thereafter. IMY notes against this background that the company, from July 6, 2019, until the communications ceased, processed the complainant's personal data in violation of Article 6.1 of the GDPR.

Swedish Data Protection Authority

Diary Number: DI-2020-10545

11(17)

Date: 2023-10-17

Complaint 3 (from Italy with national reference number: 146896)

The complainant does not specify the exact date when they first objected to direct marketing to the company by using the unsubscribe link. However, the complainant has attached email correspondence with the company from September 3, 2019, with a request to object to direct marketing. The complainant has also stated in subsequent correspondence that they have already used the unsubscribe link a dozen times.

The company cannot confirm the date of the complainant's objection as customer service correspondence with the complainant has been deleted.

From the investigation, it is not possible to determine the exact date when the complainant first objected to direct marketing. However, the investigation shows that the complainant at least objected to direct marketing on September 3, 2019, when the complainant contacted the company via email.

After the complainant objected to the processing of their personal data for direct marketing purposes at least on September 3, 2019, the company continued to send newsletters to the complainant until February 5, 2020.

In this case, the direct marketing communications consequently continued for an additional five months after the complainant's objection. The Swedish Data Protection Authority (IMY) finds that the company should have handled the complainant's request for objection at least within two days. Therefore, the

company did not handle the complainant's objection without unnecessary delay and thus acted in violation of Articles 12.3 and 21.3 of the General Data Protection Regulation (GDPR). Furthermore, the company lacked a legal basis under Article 6 of the GDPR for the processing of the complainant's personal data for direct marketing purposes that occurred thereafter. IMY notes against this background that the company from September 5, 2019, until the communications ceased, processed the complainant's personal data in violation of Article 6.1 of the GDPR.

Complaint 4 (from the United Kingdom with national diary number: RFA0782737)

The complainant does not specify the exact date when they first objected to direct marketing to the company by using the unsubscribe link. However, the complainant has attached a copy of a message to the company indicating that an unsubscribe attempt failed on July 26, 2019, as well as email correspondence with the company from July 31, 2019, which shows that the company provided further instructions on what can be done when the unsubscribe link does not work.

The company cannot confirm the date of the complainant's objection as customer service correspondence with the complainant has been deleted.

From the investigation, it is not possible to determine the exact date when the complainant first objected to direct marketing. However, the investigation shows that the complainant at least objected to direct marketing on July 31, 2018, when the company provided the complainant with further instructions regarding the unsubscribe process.

After the complainant objected to the processing of their personal data for direct marketing purposes at least on July 31, 2018, the company continued to send newsletters to the complainant until February 16, 2020.

Swedish Data Protection Authority

Diary Number: DI-2020-10545

12(17)

Date: 2023-10-17

In the current case, the dispatch of direct marketing has thus continued for an additional 18 months after the complainant's objection. The IMY finds that the company should have handled the complainant's request for objection at least within two days. The company has therefore not handled the complainant's objection without unnecessary delay and has thus acted in violation of Articles 12.3 and 21.3 of the General Data Protection Regulation (GDPR).

Furthermore, the company lacked a legal basis under Article 6 of the GDPR for the processing of the complainant's personal data for direct marketing purposes that occurred thereafter. Against this background, the IMY notes that the company, from August 2, 2018, until the dispatches ceased, processed the complainant's personal data in violation of Article 6.1 of the GDPR.

Complaint 5 (from the United Kingdom with national diary number: RFA0768679)

In their complaint to the ICO, the complainant attached a copy of the marketing dispatch received from H&M; on July 18, 2018, and the complainant states that this was the most recently received dispatch. The complaint also states that the complainant attempted to unsubscribe from the company's marketing dispatches unsuccessfully during the four weeks prior to filing the complaint. It is not indicated in the complaint when the complainant first objected to direct marketing.

The company has stated that they received the complainant's objections but cannot confirm the date when the objections were made. The company notes that the complaint suggests that they responded to the complainant on several occasions.

The IMY assesses that the investigation has shown nothing other than that the complainant, at least during July 2018, when they filed a complaint with the British data protection authority, objected to the company's direct marketing. This assessment is made particularly against the background of the deficiencies regarding the segmentation of newsletters that existed at the time of the complaint and that the complainant has stated that they attempted to object during a four-week period, as well as the company having stated that they received the complainant's objection. On May 20, 2019, the complainant was unsubscribed from the company's newsletter.

In the current case, the dispatch of direct marketing has thus continued for an additional 9 months after

the complainant's objection. The IMY finds that the company should have handled the complainant's request for objection at least within two days. The company has therefore not handled the complainant's objection without unnecessary delay and has thus acted in violation of Articles 12.3 and 21.3 of the GDPR.

Furthermore, the company lacked a legal basis under Article 6 of the GDPR for the processing of the complainant's personal data for direct marketing purposes that occurred thereafter. Against this background, the IMY notes that the company, from August 2018 until the dispatches ceased, processed the complainant's personal data in violation of Article 6.1 of the GDPR.

Complaint 6 (from Poland with national diary number: ZSPR.440.1662.2019)

The complainant does not specify the exact date when they first objected to direct marketing from the company by using the unsubscribe link. However, the complainant has attached email correspondence with the company from August 8, 2019. The correspondence shows that the complainant continues to receive newsletters despite having used the unsubscribe link many times.

Swedish Data Protection Authority

Diary Number: DI-2020-10545

13(17)

Date: 2023-10-17

The company cannot confirm the date of the complainant's objection as the customer service correspondence with the complainant has been deleted.

From the investigation, it is not possible to determine the exact date when the complainant first objected to direct marketing. However, the documentation shows that the complainant at least objected to direct marketing on August 8, 2019, when the complainant emailed the company.

The company has stated that it lacks information regarding the current complaint. However, the complainant has attached a copy of the direct marketing communication received on September 15, 2019, to their complaint. The email communication is addressed to the email address that the complainant uses in both correspondence with the company and with the Polish data protection authority. No circumstances have emerged that would lead IMY to question the documentation submitted by the complainant.

The complainant objected to direct marketing at least on August 8, 2019, and IMY's assessment is that the company sent newsletters to the complainant up until September 15, 2019. The company has also been unable to demonstrate that it informed the complainant about the delay or that the delay would be justified.

In this particular case, the direct marketing communications consequently continued for an additional month and a week after the complainant's objection. IMY finds that the company should have handled the complainant's request for objection within at least two days.

The company has therefore not handled the complainant's objection without unnecessary delay and has thus acted in violation of Articles 12.3 and 21.3 of the General Data Protection Regulation.

Furthermore, the company lacked a legal basis under Article 6 of the General Data Protection Regulation for the processing of the complainant's personal data for direct marketing purposes that occurred thereafter. Against this background, IMY concludes that the company processed the complainant's personal data in violation of Article 6.1 of the General Data Protection Regulation from August 10, 2019, until the communications ceased.

Choice of Intervention

Applicable Provisions

According to Articles 58.2 and 83.2 of the General Data Protection Regulation, IMY has the authority to impose administrative fines in accordance with Article 83. Depending on the circumstances of the individual case, administrative fines may be imposed in addition to or instead of the other measures referred to in Article 58.2, such as orders and prohibitions. If it concerns a minor infringement, IMY may, as stated in Recital 148 of the General Data Protection Regulation, instead of imposing a fine, issue a reprimand under Article 58.2 b. Consideration should be given to aggravating and mitigating circumstances in the case, such as the nature, severity, and duration of the infringement, as well as

previous relevant infringements.

Each supervisory authority shall ensure that the imposition of administrative fines in each individual case is effective, proportionate, and dissuasive. This is stated in Article 83.1 of the General Data Protection Regulation. Article 83.2 specifies the factors that should be considered in determining whether an administrative fine should be imposed and in assessing the amount of the fine.

In assessing the amount of the fine, consideration shall be given, among other things, to Article 83.2 a (the nature, severity, and duration of the infringement), c (the actions taken by the data controller), and k (other aggravating or mitigating factors, such as direct or indirect economic gain).

Integrity Protection Authority

Case Number: DI-2020-10545

Page: 14(17)

Date: 2023-10-17

The EDPB has adopted guidelines on the calculation of administrative fines under the General Data Protection Regulation (GDPR) aimed at creating a harmonized method and principles for calculating fines.³

According to Article 83.5 of the GDPR, in cases of violations of Articles 6, 12, and 21 of the GDPR, administrative fines may be imposed of up to 20,000,000 EUR or, in the case of an enterprise, up to 4 percent of the total global annual turnover in the preceding financial year, whichever is higher.

In determining the maximum amount for a fine to be imposed on an enterprise, the definition of the term enterprise used by the Court of Justice of the European Union in the application of Articles 101 and 102 of the TFEU should be applied (see Recital 150 of the GDPR). The case law of the court indicates that this includes any entity engaged in economic activity, regardless of the legal form of the entity and the method of its financing, as well as whether the entity legally consists of several natural or legal persons.⁴

Administrative Fine

IMY has assessed above that the company, by continuing with direct marketing mailings after the complainants objected to their personal data being processed for such purposes, has violated Articles 6.1, 12.2, 12.3, and 21.3 of the GDPR.

In light of the fact that the company, in six separate instances, failed to properly handle the complainants' requests to object to direct marketing and that the company continued to process the complainants' personal data for direct marketing for up to 18 months, these are not minor violations. IMY therefore finds that a reprimand is not sufficient. The company shall thus be imposed an administrative fine.

Same or Connected Data Processing

IMY has noted above that the company has acted in violation of several different articles of the GDPR concerning the six complaints. However, the violations have involved the same conduct regarding each complaint and thus constitute only one violation per complaint. The violations concerning the six complaints in this case are all a result of the company's inability to properly handle the complainants' objections to direct marketing. The company's actions regarding the six objections that the complaints concern are therefore to be seen as six connected data processing operations. IMY thus assesses that the relevant violations constitute six connected data processing operations according to Article 83.3 of the GDPR.

Determination of Administrative Fine

IMY assesses that the turnover of the company that should be used as the basis for calculating the administrative fines that the company may be imposed is the parent company H&M; Hennes & Mauritz AB (556042-7220). According to H&M; Hennes & Mauritz AB's annual report for the year 2022, the annual turnover in 2022 was approximately 223,553,000,000 SEK. Since IMY has established violations of Articles 6.1, 12.2, 12.3, and 21, the highest fine that can be determined in this case according to

3 EDPB Guidelines 04/2022 on the calculation of administrative fines under the GDPR (finalized on May 24, 2023).

4 See Judgment in Akzo Nobel, C-516/15, EU:C:2017:314, para. 48

Swedish Data Protection Authority

Diary Number: DI-2020-10545

15(17)

Date: 2023-10-17

Article 83.5 of the General Data Protection Regulation four percent of this amount, that is, 8,942,120,000 Swedish Krona.

In assessing the severity of the violations, the Swedish Data Protection Authority (IMY) has taken into account the following circumstances. The right to object is a central right under the General Data Protection Regulation, and there are high demands on data controllers to implement systems, processes, and routines to continuously ensure the data subjects' right to object in an appropriate manner and in a timely manner. IMY notes that the duration of the violations has been long; the company has been made aware of the deficiencies by several independent complainants during the period from June 2018 to September 2019. The deficiency has affected data subjects in three different countries. The company should have acted regarding the alleged deficiency as soon as it was made aware of it in connection with the first complaint.

However, IMY can note that the company, in connection with the complainants' objections, has taken measures, albeit insufficient, in order to stop the distribution of the general newsletter. The violations have also not concerned sensitive personal data, and the violations have been found to affect six complainants. Two of the complaints are also related to a period closely following the entry into force of the General Data Protection Regulation. IMY also notes that the company annually handles a very large number of subscribers and that, according to the company's own statement, only a small portion of these encounters errors. The nature of the violations has resulted in limited negative effects for the data subjects.

Based on the above circumstances, IMY assesses that the violations collectively represent a low degree of severity. The starting point for calculating the administrative fine should therefore be set low in relation to the applicable maximum amount.

In addition to the assessment of the severity of the violations, IMY will assess whether there are any aggravating or mitigating circumstances that may affect the size of the administrative fine.

IMY assesses that there are no further aggravating circumstances, beyond those considered in the assessment of severity above, that affect the size of the administrative fine. As a mitigating circumstance, IMY places particular emphasis on the fact that the company established a special working group in October 2019 to allocate additional resources and more focus on effectively resolving situations where unsubscribing encountered obstacles. The work has resulted in all identified causes being addressed through, among other things, bug fixes, adjustments of routines, working methods, and training of customer service employees at the company. Since multiple systems are involved in the distribution of newsletters, a manual routine was also implemented in May 2020 to further reduce the risk of consequences from bugs in the technical systems and to ensure that updates occur in all systems. The manual routine was automated in July 2020.

In light of the nature and severity of the violations, aggravating and mitigating circumstances, and the fact that the decision concerns the company's actions in six individual cases, IMY determines the administrative fine for H&M; Hennes & Mauritz GBC AB to 350,000 Swedish Krona. IMY assesses that this amount is effective, proportionate, and deterrent in the current case.

Swedish Data Protection Authority

Diary Number: DI-2020-10545

16(17)

Date: 2023-10-17

This decision has been made by the unit manager Albin Brunskog after presentation by the lawyer Johanna Rydh. In the final processing, the legal manager David Törngren has also participated.

Albin Brunskog, 2023-10-17 (This is an electronic signature)

Copy to

Data Protection Officer

Swedish Data Protection Authority

Diary Number: DI-2020-10545

17(17)

Date: 2023-10-17

How to appeal

If you wish to appeal the decision, you should write to the Swedish Data Protection Authority. Indicate in the letter which decision you are appealing and the change you are requesting. The appeal must be received by the Swedish Data Protection Authority no later than three weeks from the day you received notice of the decision. If the appeal is submitted in a timely manner, the Swedish Data Protection Authority will forward it to the Administrative Court in Stockholm for consideration.

You may email the appeal to the Swedish Data Protection Authority if it does not contain any privacy-sensitive personal data or information that may be subject to confidentiality. The authority's contact details are provided on the first page of the decision.